Smt. Shivani Chauhan vs Rahul Singh Parihar on 6 April, 2022

Author: Neeraj Tiwari

Bench: Neeraj Tiwari

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 9

Case :- TRANSFER APPLICATION (CIVIL) No. - 335 of 2020

Applicant :- Smt. Shivani Chauhan

Opposite Party :- Rahul Singh Parihar

Counsel for Applicant :- Mithilesh Kumar Shukla,Avanish Kumar Shukla

Hon'ble Neeraj Tiwari,J.
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Heard learned counsel for the applicant and Sri Jairaj Singh Tomar, learned counsel for the opposite party.

Learned counsel for the applicant submitted that applicant is wife of opposite party and residing at Agra alongwith her parents. She is fully depend upon her parents. He further submitted that opposite party has filed Case No. 636 of 2020 (Rahul Singh Parihar Vs. Smt. Shivani), under Section 13 of Hindu Marriage Act, 1955 before the Principal Judge, Family Court, Ghaziabad, which is around 216 kilometers away from District Agra, therefore, it is very difficult for the applicant to attend the Court proceedings at District Ghaziabad on each date fixed and defend effectively. He next submitted that two other cases being Case No. 343 of 2020, under Section 12 of Domestic Violence Act, 2005 and Case No. 1155 of 2020, under Section 125 Cr.P.C. are pending in District AgraHe next submitted that Apex Court as well as many other Courts have taken constant view that in such cases convenience of the wife has to be taken into consideration. In support of his contention, he has placed reliance upon the judgment of Apex Court, Punjab and Haryana High Court, Madras High Court and this Court in the cases of Sumita Singh Vs. Kumar Sanjay reported in

2001 LawSuit(SC) 363, Sweety Vs. Anuj Garg passed in T.A. No. 228 of 2014 decided on 11 August, 2015 and D. Kokila Vs. R. Dillibabu passed in Transfer C.M.P. No. 201 of 2016 decided on 4 October, 2016, Satyam Goyal vs. Principal Judge, Family Court Gonda and others passed in Application Nos. 93 & 119 of 2017 decided on 3.8.2018, Smt. Dipti Saxena Vs. Ashish Srivastava and another passed in Transfer Application (Civil) No. 567 of 2019 decided on 14.12.2020 and Swapnal Mishra vs. Saurabh Mishra passed in Transfer Application (Civil) Nos. 152 of 2019 & 111 of 2021 decided on 4.2.2022 respectively. Lastly, he submitted that recently this Court in the matter of Smt. Shakshi Agarwal vs. Sri Ashutosh Agarwal allowed the transfer Application filed by wife vide detailed judgment and order dated 4.2.2022 considering the different pronouncements made by the Apex Court as well as High Courts.

Sri Jairaj Singh Tomar, learned counsel for the opposite party has opposed the submission, but could not dispute the legal submission made by the learned counsel for the applicant.

I have considered rival submissions advanced by learned counsels for the parties and perused the records as well as judgments relied upon by counsel for the applicant. Facts of the case are not disputed and controversy involved in the present case is squarely covered by the judgments relied upon by counsel for applicant.

Therefore, under such facts and circumstances of the case, the transfer application is allowed. The proceeding of Case No. 636 of 2020 (Rahul Singh Parihar Vs. Smt. Shivani) is withdrawn from the Principal Judge, Family Court, Ghaziabad. Principal Judge, Family Court, Ghaziabad is directed to transmit the record of Case No. 636 of 2020 to Principal Judge, Family Court, Agra within 15 days from the date of production of certified copy of this order. Thereafter, endeavour shall be made to decide the aforesaid case maximum within a period of six months as provided in Section 21-B of Hindu Marriage Act, 1955 by the Principal Judge, Family Court, Agra or other Additional Judge as per the Rules of the Family Court.

Order Date :- 6.4.2022 Rmk.